



**Department of
Environmental
Conservation**

KATHY HOCHUL
Governor

AMANDA LEFTON
Commissioner

March 25, 2026

U.S. Merchant Marine Academy
300 Steamboat Road
Kings Point, NY 11024

**Re: Application # 1-2822-00573/00036
United States Merchant Marine Academy Property
300 Steamboat Rd, Kings Point NY 11024**

Dear Permittee:

In conformance with the requirements of the State Uniform Procedures Act (Article 70, ECL) and its implementing regulations (6NYCRR, Part 621) we are enclosing your Water Quality Certification for the referenced activity. Please carefully read all permit conditions and special permit conditions contained in the permit to ensure compliance during the term of the permit. If you are unable to comply with any conditions please contact us at the below address.

Please be advised, Special Condition 6 states that the area labeled "Basic Work to 17.5'" on page 3 of 3 of the approved site plans requires a 2 foot over-dredge, plus an additional 6-inches to remove contaminants identified in Segments 2B & 3B.

Enclosed is a permit sign which is to be conspicuously posted at the project site and protected from the weather and a Notice of Commencement/Completion of Construction.

Sincerely,

Stephanie Sforza
Environmental Analyst I

Cc: BMHP
DMR
Michael Oseback
File



PERMIT
Under the Environmental Conservation Law (ECL)

Permittee and Facility Information

Permit Issued To:

US MERCHANT MARINE ACADEMY

300 STEAMBOAT RD
KINGS POINT, NY 11024
(516) 726-6156

Facility:

UNITED STATES MERCHANT MARINE
ACADEMY

300 STEAMBOAT RD|1-b-135-100-104-105-109
KINGS POINT, NY 11024

Facility Application Contact:

MICHAEL J OSEBACK
26 FEDERAL PLAZA
ROOM 16-413
NEW YORK, NY 10278

Facility Location: in NORTH HEMPSTEAD in NASSAU COUNTY

Facility Principal Reference Point: NYTM-E: 604.274985348844 NYTM-N:
4518.819721834079

Latitude: 40°48'49.6" Longitude: 73°45'49.0"

Authorized Activity: Maintenance dredge approximately 51,640 cubic yards of material from two (2) segments of Hague Basin: Area 1: Dredging to -15' MLLW plus 2' of allowable overdredge where the area labeled "Basic Work to 17.5'" on page 3 of 3 of the approved site plans requires a 2 foot overdredge, plus an additional 6-inches and Area 2: Dredging to -12' MLLW plus 2' of allowable overdredge. Dredge material will be taken to an upland disposal facility. All authorized activities must be done in strict conformance with the attached site plans prepared by U.S. Army Corps of Engineers, pages 1-2 dated February 2026 and page 3 dated March 2026, all stamped "NYSDEC Approved" on 3/25/2026. SAS

Permit Authorizations

Water Quality Certification - Under Section 401 - Clean Water Act

Permit ID 1-2822-00573/00036

New Permit

Effective Date: 3/25/2026

Expiration Date: 3/24/2036



NYSDEC Approval

By acceptance of this permit, the permittee agrees that the permit is contingent upon strict compliance with the ECL, all applicable regulations, and all conditions included as part of this permit.

Permit Administrator: KEVIN A KISPERT, Deputy Regional Permit Administrator
Address: NYSDEC Region 1 Headquarters
SUNY @ Stony Brook|50 Circle Rd
Stony Brook, NY 11790 -3409

Authorized Signature: _____

A handwritten signature in dark ink, appearing to read "Kevin A. Kispert", written over a horizontal line.

Date 3/25/2026

Distribution List

MICHAEL J OSEBACK
Bureau of Marine Habitat Protection
Marine Resources
Stephanie Sforza
File

Permit Components

NATURAL RESOURCE PERMIT CONDITIONS

WATER QUALITY CERTIFICATION SPECIFIC CONDITION

GENERAL CONDITIONS, APPLY TO ALL AUTHORIZED PERMITS

NOTIFICATION OF OTHER PERMITTEE OBLIGATIONS

NATURAL RESOURCE PERMIT CONDITIONS - Apply to the Following Permits: WATER QUALITY CERTIFICATION

1. Conformance With Plans All activities authorized by this permit must be in strict conformance with the approved plans submitted by the applicant or applicant's agent as part of the permit application. Such approved plans were prepared by U.S. Army Corps of Engineers, pages 1-2 dated February 2026 and page 3 dated March 2026, all stamped "NYSDEC Approved" on 3/25/2026.

2. Post Permit Sign The permit sign enclosed with this permit shall be posted in a conspicuous location on the worksite and adequately protected from the weather.



3. Notice of Maintenance Dredging For maintenance dredging projects, the permittee shall submit a Notice of Commencement prior to each dredging occurrence, specifying the disposal site (including an updated site plan). Upon completion, a Notice of Completion shall be submitted to the address indicated on that notice form, including the amount of material dredged and deposited at the approved disposal site.

4. Dredging Prohibition Period Dredging is specifically prohibited from January 1 to October 31 of each year to protect migratory fish, spawning shellfish and/or spawning finfish including winter flounder. For the 2026 dredge cycle only, the Permittee is authorized to dredge during the prohibition period provided that the active work site is enclosed with a turbidity curtain as required in the following special condition. The current species of concern are as follows:

Atlantic and shortnose sturgeon: May 1 through October 31
Winter flounder: January 1 through May 31
Finfish/shellfish: June 1 through September 30

5. Filter Fabric Curtain Around Dredging A filter fabric (turbidity) curtain weighted across the bottom and suspended at the top by floats shall be positioned to enclose the active work site before commencing dredging. The curtain may be temporarily opened at the entrance of the basin to accommodate vessel activity required for dredging operation purposes; **the curtain may also be moved/alterd for curtain maintenance needs and repositioning.** If curtain openings for vessel activity, maintenance, or repositioning, exceed 5 times or total a duration longer than 1 hour per day, a double curtain system where the exterior curtain and interior curtain must not be open at the same time must be used. Once moved and transit is complete, the curtain shall be immediately reestablished and secured in its original position. The curtain shall otherwise remain in place and in functional condition during all phases of the dredging operation and for a minimum of two hours after dredging completion.

6. Over-Dredge Area There shall be a maximum of a two (2) foot over-dredge during the dredge operation. In addition, the area labeled "Basic Work to 17.5'" on page 3 of 3 of the approved site plans requires a 2 foot over-dredge, plus an additional 6-inches to remove contaminants identified in Segments 2B & 3B.

7. Barge Dewatering/Decanting The dredged material must be placed directly into barges with no barge overflow allowed. If any excess water is removed (decanted) from the barges, this must be done only within the active work site while eclosed by the required filter fabric curtain.

8. Off-Site Disposal of Dredge Material Off-site, upland disposal of dredged material on Long Island beyond NYSDEC Tidal Wetland jurisdiction requires the additional guidance of the Division of Materials Management (631) 444-0375 and is not covered by this permit.

9. Storage of Equipment, Materials The storage of construction equipment and materials shall be confined to the upland area landward of the bulkhead or on a barge.



10. Restrict Spillage, Used Closed Bucket During the dredging operation, the permittee and his contractor shall prevent spillage of sediment during excavation and haulage. Dredging shall be accomplished with a closed clamshell environmental bucket without barge overflow to reduce impacts to the aquatic environment.

11. Closed Environmental Bucket A closed (i.e., sealed) environmental (clamshell) bucket with sealing gaskets or an overlapping sealed design at the jaws and seals or flaps positioned at locations of vent openings shall be used to minimize sediment re-suspension at the dredging site. Seals or flaps designed or installed at the jaws and locations of vent openings must tightly cover these openings while the bucket is lifted through the water column and into the barge. The closed environmental (clamshell) bucket dredge shall be equipped with sensors to ensure complete closure of the bucket before lifting through the water.

12. Bucket Hoist Speed Bucket hoist speed shall be limited to approximately 2 feet per second.

13. No Side-casting or Temporary Storage Excavated sediment shall be placed directly into the approved disposal/dewatering site or conveyance vehicle. No side-casting (double dipping) or temporary storage of dredged material is authorized.

14. Leave a Uniform Bottom Elevation All dredging shall be conducted using best management practices during the dredging so as to leave a relatively uniform bottom elevation free from mounds and holes.

15. Dredge Bucket Operations The bucket shall be lifted in a continuous motion through the water column and into the barge, disposal site or conveyance vehicle.

16. No Overflow from Barges There shall be no overflow of material from the holding barges during dredging or during transport of dredged material.

17. Dredge Bucket Operation The bucket shall be lowered to the level of the barge gunwales prior to release of the load.

18. Grade Channel Side Slopes All side slopes of the dredge channel will have a maximum of 1:3 slope.

19. Dredging Once Per Year Dredging shall be undertaken no more than once in any calendar year unless specifically authorized by the department.

20. Dredged Depth Survey Within 60 days of completion of the dredging operation, an as-dredged depth survey of the dredged area shall be submitted to

Bureau of Habitat-TW
SUNY @ Stony Brook, 50 Circle Road
Stony Brook, New York 11790-3409
Attn: Compliance



21. State Not Liable for Damage The State of New York shall in no case be liable for any damage or injury to the structure or work herein authorized which may be caused by or result from future operations undertaken by the State for the conservation or improvement of navigation, or for other purposes, and no claim or right to compensation shall accrue from any such damage.

22. State May Order Removal or Alteration of Work If future operations by the State of New York require an alteration in the position of the structure or work herein authorized, or if, in the opinion of the Department of Environmental Conservation it shall cause unreasonable obstruction to the free navigation of said waters or flood flows or endanger the health, safety or welfare of the people of the State, or cause loss or destruction of the natural resources of the State, the owner may be ordered by the Department to remove or alter the structural work, obstructions, or hazards caused thereby without expense to the State, and if, upon the expiration or revocation of this permit, the structure, fill, excavation, or other modification of the watercourse hereby authorized shall not be completed, the owners, shall, without expense to the State, and to such extent and in such time and manner as the Department of Environmental Conservation may require, remove all or any portion of the uncompleted structure or fill and restore to its former condition the navigable and flood capacity of the watercourse. No claim shall be made against the State of New York on account of any such removal or alteration.

23. State May Require Site Restoration If upon the expiration or revocation of this permit, the project hereby authorized has not been completed, the applicant shall, without expense to the State, and to such extent and in such time and manner as the Department of Environmental Conservation may lawfully require, remove all or any portion of the uncompleted structure or fill and restore the site to its former condition. No claim shall be made against the State of New York on account of any such removal or alteration.

24. Precautions Against Contamination of Waters All necessary precautions shall be taken to preclude contamination of any wetland or waterway by suspended solids, sediments, fuels, solvents, lubricants, epoxy coatings, paints, concrete, leachate or any other environmentally deleterious materials associated with the project.

WATER QUALITY CERTIFICATION SPECIFIC CONDITIONS

1. Water Quality Certification The authorized project, as conditioned pursuant to the Certificate, complies with Section 301, 302, 303, 306, and 307 of the Federal Water Pollution Control Act, as amended and as implemented by the limitations, standards, and criteria of state statutory and regulatory requirements set forth in 6 NYCRR Section 608.9(a). The authorized project, as conditioned, will also comply with applicable New York State water quality standards, including but not limited to effluent limitations, best usages and thermal discharge criteria, as applicable, as set forth in 6 NYCRR Parts 701, 702, 703, and 704.



GENERAL CONDITIONS - Apply to ALL Authorized Permits:

1. Facility Inspection by The Department The permitted site or facility, including relevant records, is subject to inspection at reasonable hours and intervals by an authorized representative of the Department of Environmental Conservation (the Department) to determine whether the permittee is complying with this permit and the ECL. Such representative may order the work suspended pursuant to ECL 71- 0301 and SAPA 401(3).

The permittee shall provide a person to accompany the Department's representative during an inspection to the permit area when requested by the Department.

A copy of this permit, including all referenced maps, drawings and special conditions, must be available for inspection by the Department at all times at the project site or facility. Failure to produce a copy of the permit upon request by a Department representative is a violation of this permit.

2. Relationship of this Permit to Other Department Orders and Determinations Unless expressly provided for by the Department, issuance of this permit does not modify, supersede or rescind any order or determination previously issued by the Department or any of the terms, conditions or requirements contained in such order or determination.

3. Applications For Permit Renewals, Modifications or Transfers The permittee must submit a separate written application to the Department for permit renewal, modification or transfer of this permit. Such application must include any forms or supplemental information the Department requires. Any renewal, modification or transfer granted by the Department must be in writing. Submission of applications for permit renewal, modification or transfer are to be submitted to:

Regional Permit Administrator
NYSDEC Region 1 Headquarters
SUNY @ Stony Brook|50 Circle Rd
Stony Brook, NY11790 -3409

4. Submission of Renewal Application The permittee must submit a renewal application at least 30 days before permit expiration for the following permit authorizations: Water Quality Certification.



5. Permit Modifications, Suspensions and Revocations by the Department The Department reserves the right to exercise all available authority to modify, suspend or revoke this permit. The grounds for modification, suspension or revocation include:

- a. materially false or inaccurate statements in the permit application or supporting papers;
- b. failure by the permittee to comply with any terms or conditions of the permit;
- c. exceeding the scope of the project as described in the permit application;
- d. newly discovered material information or a material change in environmental conditions, relevant technology or applicable law or regulations since the issuance of the existing permit;
- e. noncompliance with previously issued permit conditions, orders of the commissioner, any provisions of the Environmental Conservation Law or regulations of the Department related to the permitted activity.

6. Permit Transfer Permits are transferrable unless specifically prohibited by statute, regulation or another permit condition. Applications for permit transfer should be submitted prior to actual transfer of ownership.

NOTIFICATION OF OTHER PERMITTEE OBLIGATIONS

Item A: Permittee Accepts Legal Responsibility and Agrees to Indemnification

The permittee, excepting state or federal agencies, expressly agrees to indemnify and hold harmless the Department of Environmental Conservation of the State of New York, its representatives, employees, and agents ("DEC") for all claims, suits, actions, and damages, to the extent attributable to the permittee's acts or omissions in connection with the permittee's undertaking of activities in connection with, or operation and maintenance of, the facility or facilities authorized by the permit whether in compliance or not in compliance with the terms and conditions of the permit. This indemnification does not extend to any claims, suits, actions, or damages to the extent attributable to DEC's own negligent or intentional acts or omissions, or to any claims, suits, or actions naming the DEC and arising under Article 78 of the New York Civil Practice Laws and Rules or any citizen suit or civil rights provision under federal or state laws.

Item B: Permittee's Contractors to Comply with Permit

The permittee is responsible for informing its independent contractors, employees, agents and assigns of their responsibility to comply with this permit, including all special conditions while acting as the permittee's agent with respect to the permitted activities, and such persons shall be subject to the same sanctions for violations of the Environmental Conservation Law as those prescribed for the permittee.

Item C: Permittee Responsible for Obtaining Other Required Permits

The permittee is responsible for obtaining any other permits, approvals, lands, easements and rights-of-way that may be required to carry out the activities that are authorized by this permit.



Item D: No Right to Trespass or Interfere with Riparian Rights

This permit does not convey to the permittee any right to trespass upon the lands or interfere with the riparian rights of others in order to perform the permitted work nor does it authorize the impairment of any rights, title, or interest in real or personal property held or vested in a person not a party to the permit.





Department of
Environmental
Conservation

NOTICE

The Department of Environmental Conservation (DEC) has issued permit(s) pursuant to the Environmental Conservation Law for work being conducted at this site. For further information regarding the nature and extent of work approved and any Departmental conditions on it, contact the Regional Permit Administrator listed below. Please refer to the permit number shown when contacting the DEC.

Regional Permit Administrator

Permit Number 1-2822-00573/00036 SUSAN ACKERMAN
Expiration Date 3/24/2036

NOTE: This notice is **NOT** a permit

NOTICE OF COMMENCEMENT OF CONSTRUCTION

RETURN THIS FORM TO: COMPLIANCE

Marine Habitat Protection - NYSDEC
SUNY at Stony Brook
50 Circle Road
Stony Brook, NY 11790-3409

Or Fax to: 631-444-0272

E-Mail: dec.sm.R1MHP-BEH@dec.ny.gov

PERMIT NUMBER: _____ EXPIRATION DATE: _____

PERMITTEE NAME & PROJECT ADDRESS: _____

CONTRACTOR NAME & ADDRESS: _____

TELEPHONE: _____

Dear DEC:

Pursuant to the special conditions of the referenced permit, you are hereby notified that the authorized activity shall commence on _____. We certify that we have read the referenced permit and approved plans and fully understand the authorized project and all permit conditions. We have inspected the project site and can complete the project as described in the permit and as depicted on the approved plans. We can do so in full compliance with all plan notes and permit conditions. The permit, permit sign, and approved plans will be available at the site for inspection in accordance with General Condition No. 1. (Both signatures required)

PERMITTEE: _____ DATE _____

CONTRACTOR: _____ DATE _____

THIS NOTICE MUST BE SENT TO THE ABOVE ADDRESS AT LEAST TWO DAYS PRIOR TO COMMENCEMENT OF THE PROJECT AND /OR ANY ASSOCIATED ACTIVITIES. FAILURE TO RETURN THIS NOTICE, POST THE PERMIT SIGN, OR HAVE THE PERMIT AND APPROVED PLANS AVAILABLE AT THE WORK SITE FOR THE DURATION OF THE PROJECT MAY SUBJECT THE PERMITTEE AND/OR CONTRACTOR TO APPLICABLE SANCTIONS AND PENALTIES FOR NON-COMPLIANCE WITH PERMIT CONDITIONS.

Cut along this line X _____ X _____ X _____ X _____ X _____ X _____ X _____

NOTICE OF COMPLETION OF CONSTRUCTION

RETURN THIS FORM TO: COMPLIANCE

Marine Habitat Protection - NYSDEC
50 Circle Road
Stony Brook, NY 11790-3409

Or Fax to: 631-444-0272

E-Mail: dec.sm.R1MHP-BEH@dec.ny.gov

PERMIT NUMBER: _____ EXPIRATION DATE: _____

PERMITTEE NAME & PROJECT ADDRESS: _____

CONTRACTOR NAME & ADDRESS: _____

TELEPHONE: _____

Pursuant to special conditions of the referenced permit, you are hereby notified that the authorized activity was completed on _____. We have fully complied with the terms and conditions of the permit and approved plans. (Both signatures required)

PERMITTEE: _____ DATE _____

CONTRACTOR: _____ DATE _____

THIS NOTICE, WITH PHOTOGRAPHS OF THE COMPLETED WORK AND/OR A COMPLETED SURVEY, AS APPROPRIATE, MUST BE SENT TO THE ABOVE ADDRESS WITHIN 30 DAYS OF COMPLETION OF THE PROJECT.